



## JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

### SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

**Department of State  
Contracting Activity**

☒ INL/EX/GAPP

**Requiring Activity**

INL/EX/IM

### SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to solicit and award a Firm-Fixed Price contract on a sole-source basis to Guidehouse LLP, 1676 International Drive, McClean, VA 22102, for the supplies and/or services described in Section 3 on behalf of the Requiring Activity.

### SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The Bureau of International Narcotics and Law Enforcement Affairs (INL) is an instrumental leader in the development of policies and programs to combat international narcotics and crime. INL programs support two of the Department of States' strategic goals: (1) to reduce the entry of illegal drugs into the United States; and (2) to minimize the impact of international crime on the United States and its citizens. One of the many ways to effectively meet the listed goals is to collaborate with allied governments both directly and indirectly to promote the modernization of and support the enforcement operations of their foreign criminal justice systems and law enforcement agencies.

INL has decided to develop an information technology/information management (IT/IM) platform with components that will bring together multiple datasets from different phases of the program lifecycle, third-party datasets, and various Department or Bureau systems of record for use in day-to-day operations across the Bureau. In support of this, INL requires assistance with defining and documenting the vision and roadmap of this solution, to include:

Phase 1: The contractor shall assess and revalidate the charter and purpose of the Information Management Advisory Council (IMAC) based on its original intent to identify IT/IM process and policy improvements and prioritize related INL investments.

Phase 2: The contractor shall Identify further Data Needs: Based on the goals agreed for the establishment of the IMAC, INL's program life cycle, and INL's existing IT\IM investment decisions; identification of further information technology areas that could improve the efficiency and effectiveness of INL's business processes, strategy development, and impact reporting. This would include where the data will originate from and export to/integrate with (e.g., enterprise-wide systems such as GFMS, FACTS Info, HR platforms, Cascades; INL systems such as GTTS/IGN, DevResults, and the Cactus software suite; related J-Family and other bureau systems;



manual entry; SharePoint repositories/systems, etc.), remaining gaps, areas of potential duplication, and potential solutions.

**Phase 3:** The contractor shall provide a report outlining any adjustments to INL's established roles and responsibilities and any further contractor-identified recommended roles and responsibilities among the IMAC, the Information Management Division of the Executive Office, the Knowledge Management Office, Airwing, INL Cloud Team, and others as appropriate. This shall be based on a re-validation of the charter and aligned to the information management needs identified. This report shall identify staffing or skills gaps required to implement the work plan in #4.

**Phase 4:** The contractor shall provide an initial work plan for the PMO to utilize in prioritizing and tracking progress of INL IT/IM investments. The work plan should define, prioritize, and communicate the development and rollout of the platform components.

#### **SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION**

This acquisition is conducted under the authority of 41 USC 3304, as implemented by FAR 6.3 and substantiated by the following:

☒ FAR 6.302-1 – Only one responsible source and no other supplies or services will satisfy agency requirements.

#### **SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED**

Due to the status of the phased approach referenced under section 3, a sole source procurement is a logical follow-on to the original contract and ensure that the project can continue to benefit the Government long term. Guidehouse has partially completed the work that the Information Managing Advisory Charter has defined. They have been an intricate part of assessing the bureau's deficiencies and assisting the Government with performance of resolution of the deficiencies identified.

INL has leveraged Guidehouse to assist with programs to develop requirements for the IT System, lead scrum ceremonies but we are approximately 30 months from completion. In addition, at the time of issuance, INL believed that there would be FTE in place to take over the PMO thru transition, however, there was a reorganization that has not been finalized by GTM which has resulted in delays onboarding new IT managers and a scrum master. As such, it is essential that INL continue to work with Guidehouse to finalize the IT Solutions, user stories and UAT thru the lifecycle of the Improvix system development. The estimate was created on the basis of hiring the FTE replacement personnel to stand up a IT program management offices.



**SECTION 6. DESCRIPTION OF EFFORTS TO ENSURE THAT OFFERS WERE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS OR WILL BE PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2 AND, IF NOT, WHICH EXCEPTION UNDER FAR 5.202 APPLIES**

The proposed contract action is made under the terms of an existing contract that was previously synopsisized in sufficient detail to comply with the requirements of 5.207 with respect to the current proposed contract action. The proposed contract was synopsisized on 08/09/2022 and only Guidehouse LLP expressed an interest in this requirement. No additional market research was conducted because it is not practicable, for the reasons discussed in paragraph 5 above, for any company other than Guidehouse to provide the required supplies and services. However, a post award synopsis shall be posted within 14 days of award.

**SECTION 7. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE**

[REDACTED]

The Contracting Officer has determined the anticipated sole source contract action will represent the best value based on the Contracting Officer's plan. Although approval is requested to contract with one source, the Contracting Officer will not award the planned contract action unless the Contracting Officer evaluates and determines that the resultant price is reasonable. If the Bureau is to compete and transition these services, there would be significant delays on the other contract as well as significant duplication for transition time which would result in approximately [REDACTED] for three months as well as slippage in the production schedule. The estimate cost would be approximately [REDACTED] on an effort who's total between both contracts for the year is approximately [REDACTED]. This inflation in costs would result in delays as well as not serve in the best interest of the Government.

By signing the justification, the Contracting Officer makes a determination that the [REDACTED] price to the Government is expected to be fair and reasonable.

**SECTION 8. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED (SEE PART 10) AND THE RESULTS OR A STATEMENT OF THE REASON MARKET RESEARCH WAS NOT CONDUCTED**

As this is for a sole source follow-on, no additional market research was conducted.

**SECTION 9. ANY OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION**

Guidehouse has already partially completed much of the work outlined in the IMAC Charter which includes validations and assessments in order to address deficiencies and develop improvements. These assessments



will form the basis for recommendations and process improvements, increasing effectiveness and efficiency of resources, and the development of an initial work plan by Guidehouse. If a new vendor were to come on board at this stage, it would need to conduct its own validations and assessments which would result in both a duplication of efforts and respective costs incurred to date.

**SECTION 10. LISTING OF THE SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION**

No sources indicated an interest.

**SECTION 11. STATEMENT OF THE ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION FOR THE SUPPLIES OR SERVICES REQUIRED**

Government will continue to conduct market research to understand the marketplace capabilities for future requirements and seek competition for future acquisitions for these services.



## **SECTION 12. CERTIFICATIONS**

All reviews and approvals should be completed in the order listed unless otherwise authorized or required.

### **TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 6.303-2(b))**

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

**Requirements Cognizance:**

**SIGNATURE:**

### **LEGAL SUFFICIENCY REVIEW**

This J&A is hereby determined to be legally sufficient.

**SIGNATURE:**

Office of the Legal Adviser, Buildings and Acquisitions (L/BA)

### **CONTRACTING OFFICER CERTIFICATION (FAR 6.303-2(a)(12))**

I certify that this submission is accurate to the best of my knowledge, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

**SIGNATURE:**

Contracting Officer & Branch Chief  
INL/EX/GAPP – Contracts Branch



**SIGNATURE:**

Division Director  
INL/EX/GAPP

### **SECTION 13. APPROVALS**

**COMPETITION ADVOCATE**

**SIGNATURE:**

Competition Advocate

*NOTE: Each review must stipulate and include lower level signatory concurrence only prior to the higher dollar threshold approval. Signatories shall not exceed FAR or U.S.C. dollar threshold authority.*